

Bernard

RECEIVED

Manuel Barreto
53-15 58th Street
Woodside, New York 11377

Brian O'Neil
53-15 58th Street
Woodside, New York 11377

Kevin Houst
53-15 58th Street
Woodside, New York 11377

1a\12169summons

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
STEVEN ALLEYNE	:	Index No.:
	:	
Plaintiff,	:	Date of Filing:
	:	
-against-	:	
	:	<u>VERIFIED COMPLAINT</u>
ALAN DALESSIO,	:	
THE CITY OF NEW YORK,	:	
THE NEW YORK CITY POLICE DEPARTMENT,	:	
MANUEL BARRETO,	:	
BRIAN O'NEIL,	:	
KEVIN HOUST,	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, STEVEN ALLEYNE, by and through his attorney
DOMINICK W. LAVELLE, ESQ., complaining of the defendants herein,
hereby alleges as follows:

1. That at all times hereinafter mentioned, plaintiff STEVEN
ALLEYNE was and is a resident of the County of Bronx, State of
New York, residing at 924 East 221st Street, Bronx, New York
10469.

2. That in and at all times hereinafter mentioned, and upon
information and belief, defendant ALAN DALESSIO was and is an
individual residing and/or doing business at 4111 Laconia Avenue,
Bronx, New York 10469.

3. That at all times hereinafter mentioned, and upon
information and belief, defendant THE CITY OF NEW YORK was and
still is a municipal corporation duly created and existing by and

under the laws of the State of New York located at 100 Church Street, Room 5A1, New York, New York 10007.

4. That at all times hereinafter mentioned, and upon information and belief, defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is a public service corporation duly created and existing by and under the laws of the State of New York located at 100 Church Street, Room 5A1, New York, New York 10007.

5. That at all times hereinafter mentioned, and upon information and belief, defendant THE NEW YORK CITY POLICE DEPARTMENT was and still is a public service corporation duly created and existing by and under the laws of the State of New York located at 53-15 58th Street, Woodside, New York 11377.

6. That at all times hereinafter mentioned, and upon information and belief, defendant THE NEW YORK CITY POLICE DEPARTMENT is a department of defendant THE CITY OF NEW YORK; said THE CITY OF NEW YORK being responsible for the department's operation and answerable for torts committed by its employees.

7. That in and at all times hereinafter mentioned, and upon information and belief, defendant ALAN DALESSIO was an individual employed and doing business at 53-15 58th Street, Woodside, New York 11377 on or about September 1, 2009.

8. Defendant ALAN DALESSIO was an employee of THE NEW YORK CITY POLICE DEPARTMENT on the 1st day of September, 2009.

9. Defendant ALAN DALESSIO was an employee of THE CITY OF NEW YORK on the 1st day of September, 2009.

10. That in and at all times hereinafter mentioned, and upon information and belief, defendant MANUEL BARRETO was an individual employed and doing business at 53-15 58th Street, Woodside, New York 11377 on or about September 1, 2009.

11. Defendant MANUEL BARRETO was an employee of THE NEW YORK CITY POLICE DEPARTMENT on the 1st day of September, 2009.

12. Defendant MANUEL BARRETO was an employee of THE CITY OF NEW YORK on the 1st day of September, 2009.

13. That in and at all times hereinafter mentioned, and upon information and belief, defendant BRIAN O'NEIL was an individual employed and doing business at 53-15 58th Street, Woodside, New York 11377 on or about September 1, 2009.

14. Defendant BRIAN O'NEIL was an employee of THE NEW YORK CITY POLICE DEPARTMENT on the 1st day of September, 2009.

15. Defendant BRIAN O'NEIL was an employee of THE CITY OF

NEW YORK on the 1st day of September, 2009.

16. That in and at all times hereinafter mentioned, and upon information and belief, defendant KEVIN HOUST was an individual employed and doing business at 53-15 58th Street, Woodside, New York 11377 on or about September 1, 2009.

17. Defendant KEVIN HOUST was an employee of THE NEW YORK CITY POLICE DEPARTMENT on the 1st day of September, 2009.

18. Defendant KEVIN HOUST was an employee of THE CITY OF NEW YORK on the 1st day of September, 2009.

19. At all times hereinafter mentioned all allegations against THE CITY OF NEW YORK should be read to apply in equal force and effect to defendant THE NEW YORK CITY POLICE DEPARTMENT.

20. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK was the owner of a certain FORD vehicle, registered in the State of New York, bearing license plate number 5977 (the "FORD").

21. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK was the lessee of the FORD.

22. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK was the operator of the FORD.

23. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK controlled the FORD.

24. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK had the sole and exclusive power to hire employees to operate said FORD.

25. That at all times hereinafter mentioned defendant THE CITY OF NEW YORK had the responsibility to train the employees who could potentially drive the FORD.

26. That at all times hereinafter mentioned defendant ALAN DALESSIO was the operator of the FORD with the permission of the owner.

27. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST were passengers in the police FORD.

28. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST were in the course of their duty at the time of the accident.

29. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN

HOUST were operating under cover at the time of the accident.

30. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST were doing drug surveillance at the time of the accident.

31. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST were speaking to defendant ALAN DALESSIO at the time of the accident.

32. That defendants MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST directed defendant ALAN DALESSIO to go the wrong way down a one way street at the time of the accident.

33. That at all times hereinafter mentioned plaintiff was the owner and operator of a FORD SUV motor vehicle registered in the State of New York bearing license plate number BAB4659 (the "Plaintiff's FORD").

34. That on the 1st day of September, 2009, East 222nd Street at Barnes Avenue was a public roadway in the County of Bronx, City and State of New York.

35. That on the 1st day of September, 2009, at approximately 10:54 P.M., the FORD owned, leased, operated and controlled by defendant THE CITY OF NEW YORK and operated by defendant ALAN DALESSIO and occupied by defendants MANUEL BARRETO, BRIAN O'NEIL,

KEVIN HOUST did come into contact with the FORD operated by plaintiff STEVEN ALLEYNE on East 222nd Street at Barnes Avenue in the County of Bronx, City and State of New York.

AS AND FOR A FIRST CAUSE OF ACTION
(Negligence Against THE CITY OF NEW YORK,
THE NEW YORK CITY POLICE DEPARTMENT, MANUEL BARRETO,
BRIAN O'NEIL, KEVIN HOUST and ALAN DALESSIO)

36. Plaintiff repeats and realleges each of the allegations contained in paragraph "1" through "35" of the Complaint as if set forth herein at length.

37. That defendants were negligent in the ownership, control, operation and maintenance of said FORD and did cause a collision to occur. Defendants negligently and carelessly operated said vehicle at an excessive rate of speed for the conditions there and then existing; failed to operate said vehicle within the posted speed limit; operate without headlights illuminated; drove the wrong way on a one-way street; entered an intersection without being sure it was clear; engaged in conversation and banter that distracted the driver and lead to the accident; were overzealous and negligent in their drug operations and thereby injured plaintiff; failed to keep proper control of said vehicle; failed to yield to traffic; failed to properly use signalling and safety devices; failed to keep a proper lookout under the circumstances then existing to see and be aware of what was in view; failed to use reasonable care to

avoid an accident.

38. That by reason of the foregoing, plaintiff STEVEN ALLEYNE was injured.

39. That the foregoing accident and the resulting injuries and damages to plaintiff STEVEN ALLEYNE were caused solely by virtue of the carelessness, negligence and culpable acts and conduct on the part of the defendants and without any negligence on the part of the plaintiff contributing thereto.

40. That this action falls within one or more of the exceptions set forth in CPLR 1602.

41. That by reason of the foregoing, plaintiff STEVEN ALLEYNE, was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff STEVEN ALLEYNE will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries and plaintiff STEVEN ALLEYNE has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and the plaintiff STEVEN ALLEYNE will

be unable to pursue his usual duties with the same degree and efficiency as prior to this accident, all to his damage.

42. Within ninety days after the plaintiff's claim against THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT arose, and on or about the 18th day of November, 2009, a notice sworn by the plaintiff, STEVEN ALLEYNE was delivered by certified mail return receipt requested to The City of New York, Law Department, 100 Church Street, New York, New York 10007, the officer on whom a summons against the defendant could be served, which notice set forth the names and post office addresses of the plaintiff and his attorney, the nature of his claim, the time, place, and manner in which it arose, and the items of damage and injuries claimed to have been sustained.

43. More than thirty days have elapsed since the service of such notice as aforesaid, and the adjustment or payment therefor has been neglected or refused. A statutory 50h hearing was held on January 28, 2010.

44. That as a result of the foregoing, this plaintiff STEVEN ALLEYNE suffered a serious injury as defined by Section 5102(d) of the Insurance Law of the State of New York.

45. That by reason thereof, plaintiff STEVEN ALLEYNE is entitled to recover from non-economic loss and for such economic

losses that are not included within the definition of the "basic economic loss" as set forth in Section 5102(a) of the Insurance Law of the State of New York.

46. The plaintiff is a "covered person" as defined by Section 5102(j) of the Insurance Law of the State of New York.

47. That by reason of the foregoing, plaintiff, STEVEN ALLEYNE has been damaged.

48. The amount of damages sought exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff STEVEN ALLEYNE demands judgment against the defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and ALAN DALESSIO, in the first cause of action, the costs and disbursements of this action, and such other relief the court may deem just and proper.

AS AND FOR A SECOND CAUSE OF ACTION
(Property Damage by STEVEN ALLEYNE Against
THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
MANUEL BARRETO, BRIAN O'NEIL, KEVIN HOUST and ALAN DALESSIO)

49. Plaintiff STEVEN ALLEYNE repeats and realleges each of the allegations contained in paragraphs "1" through "35", "42-43" of the complaint as if set forth herein at length.

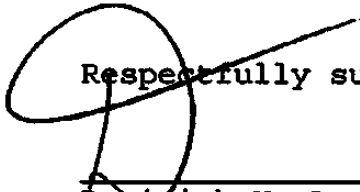
50. That defendants were negligent in their control, operation, ownership and maintenance of said FORD.

51. That the foregoing accident and the resulting property damage to the plaintiff's vehicle were caused solely by virtue of the carelessness, negligence and culpable acts and conduct on the part of the defendants and without any negligence on the part of the plaintiff contributing thereto.

52. That by reason of the foregoing, plaintiff STEVEN ALLEYNE has been damaged in the sum of TWENTY THOUSAND (\$20,000.00) DOLLARS.

WHEREFORE, plaintiff STEVEN ALLEYNE demands judgment against defendants in the second cause of action in the sum of TWENTY THOUSAND (\$20,000.00) DOLLARS, the costs and disbursements of this action, and such other relief the court may deem just and proper.

Dated: Mineola, New York
April 5, 2010

 Respectfully submitted,

Dominick W. Lavelle, Esq.
Attorney for Plaintiff
STEVEN ALLEYNE
38 Willis Avenue
Mineola, New York 11501
(516) 739-8111

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